

Consider these essential legal documents before your child leaves for college

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Packing for a child heading off to college? Don't forget the legal documents.

While laptops, clothes and room furnishings are priorities for many students packing for college, families need to know about legal documents they can put in place before students head off to school.

Be prepared

Parents may want to prepare a health care proxy for their child to help them in case of an emergency away from home. Without certain documents, parents could face obstacles when requesting medical information, offering help or making medical decisions.

Designating a health care proxy

For students under the age of 18, a health care provider can release medical records and share information with parents. But once children reach 18, they are entitled to medical record and financial privacy. Doctors cannot share information without permission because of the federal Health Insurance Portability and Accountability Act (HIPAA). If families prepare the proper documents ahead of time, they can receive this important medical information, allowing parents to learn about their child's medical condition, access records and make decisions for them if needed.

With a health care proxy, a child can designate a parent as an agent or proxy. Numerous resources explain the process of selecting a proxy. Here is a resource with a state-by-state listing of advance directive forms. (see <https://www.everplans.com/articles/state-by-state-advance-directive-forms>).

If a child is unable to make decisions, the proxy may obtain information about the child's condition, discuss options, express their wishes and make treatment decisions. A living will is often paired with the health care proxy, and signed at the same time, to help guide the proxy. This document allows the student to discuss their wishes regarding the use of various types of medical treatments to extend life.

For many states, there is conformity among these forms, meaning that executing a health care proxy in one state will apply to another. But there can be differences between the states. For parents of students attending college out of state, it is important to seek advice on the correct documents to use. State-specific advance directive forms can be downloaded at no cost at caringinfo.org, a program of the nonprofit National Hospice and Palliative Care Organization. Families may also want to consult with an attorney to ensure that important variables and considerations are addressed.

A student may have opted to stay on the family health insurance plan rather than enroll in school-sponsored coverage (to avoid extra costs make sure to opt out of school-based coverage). But enrollment in the family's insurance plan does not preclude the child's right to privacy. Without a health care proxy, parents are not entitled to medical information about an adult child.

HIPAA medical release

When patients visit a doctor or hospital, they are often asked to sign a HIPAA form, allowing medical information to be shared with a designated person. Typically, these forms are signed at the treating facility. However, documents can be prepared in advance and should include language that will allow the designated agent to receive medical information in compliance with HIPAA regulations.

Durable power of attorney

Parents and students may also want to consider a durable power of attorney. This document authorizes an agent (the parent) to manage finances and sign legal documents on behalf of the patient if they are incapacitated. The power of

attorney allows parents to sign documents, access bank accounts and manage their child's accounts.

Seek help in gathering the documents

The best time to prepare legal documents is before a child leaves for college. Parents may want to seek help from a family financial advisor or legal counsel to gather and review the documents.

Getting access to important student records

Once a child leaves for college, the parents may no longer receive updates on grades, financial statements or other information. In general, a federal law called the Federal Education Rights Privacy Act (FERPA) prevents a college or university from sharing student information with others, including parents and guardians. This applies even to students under the age of 18. However, at most schools, students can give permission to their parents to view financial statements online. This provides access for parents to financial statements, including tuition and refunds. Parents may also continue to view academic reports.

Plan ahead

Multiple studies have shown a low rate of advance care planning (ACP) among young adults, including the completion of health care proxies (HCPs) and other advance directives.

Hopefully, there will not be an emergency that requires parents to make difficult medical decisions for their children. But having a plan in place in advance can alleviate stress and complications if a difficult situation arises while a child is away from home.

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